

2012

M B A

2nd Semester Examination

CORPORATE GOVERNANCE AND LEGISLATION

PAPER—207

Full Marks : 100

Time : 3 Hours

The figures in the right-hand margin indicate full marks.

Candidates are required to give their answers in their own words as far as practicable.

Illustrate the answers wherever necessary.

Write the answers to Questions of each Half in separate books.

(First Half)

(Marks : 50)

1. Answer any four questions :

4×5

- (a) Classify the companies with reference to limitation of liability.
- (b) Write a note on 'Sweat Equity Shares'.
- (c) Discuss the procedure of resignation of a director of a company. Is there any difference between

(Turn Over)

resignation of an ordinary director and resignation of a managing director ?

- (d) "The nature of duties of directors depends upon the nature of directorship". Discuss.
- (e) Write a note on 'number of directors in a company'.
- (f) What should be the proportion of executive and non-executive directors in the Board of Directors as per the requirement of Revised Clause 49 of Standard Listing Agreement ?

2. Answer any two questions :

2×10

- (a) Sketch the distribution of powers between the members and directors of a company. Is there any exception to the general rule ?
- (b) State the provisions in the companies Act, 1956 relating to the appointment of directors of a company.
- (c) Describe Anglo-American model of Corporate Governance.

[Internal Assessment : 10 Marks]

(Second Half)**(Marks : 50)**

- 3. Answer any four questions :** **4×5**
- (a) What are the objectives of formation of Board Committees ?
 - (b) What are the functions of Board Committees ? Give examples to illustrate your answer.
 - (c) State the essentials of a valid notice of a Board meeting.
 - (d) Narrate the rules regarding meeting of committees of Directors.
 - (e) Explain the term 'Corporate Governance'.
 - (f) Write short note on statistical books of accounts as per Companies Act, 1956.
- 4. Answer any two questions :** **2×10**
- (a) 'K. M. Birla Committee was setup by SEBI to give recommendations on Corporate Governance to it' Discuss.
 - (b) Discuss the provisions of clause 49 of the 'Listing Agreement' of SEBI.

- (c) (i) Briefly explain the provisions of the Companies Act, 1956 regarding adoption of annual accounts at the Annual General Meeting.
- (ii) Write a note on Naresh Chandra Committee Recommendation.

[Internal Assessment : 10 Marks]
